Syllabus

WHITTON *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS

ON PETITION FOR WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE ELEVENTH CIRCUIT

No. 25–580. Decided June 1, 2026

During petitioner Gary Richard Whitton's murder trial, the State called a jailhouse informant named Jake Ozio, who testified that he overheard Whitton confess. Ozio also falsely testified that he had no criminal history prior to the arrest for which he was jailed with Whitton. Ozio's juvenile records showed he had previously been charged with assault with bodily injury, terroristic threats, and burglary. Whitton was convicted and sentenced to death. After unsuccessfully pursuing a direct appeal and state postconviction relief, he filed an application for a writ of habeas corpus in Federal District Court. Whitton argued that Ozio's criminal-history testimony was false, that the prosecution knew it was false because it possessed Ozio's juvenile records, and that there was a reasonable likelihood the testimony affected the jury's verdict, thereby violating his due process rights under *Giglio* v. *United States*, 405 U. S. 150. Whitton further contended that federal habeas relief was warranted because the *Giglio* error had a "'substantial and injurious effect or influence in determining the jury's verdict.'" *Brecht* v. *Abrahamson*, 507 U. S. 619, 623. The District Court denied relief, finding that any *Giglio* error could not have made a difference because Florida juvenile criminal records are generally inadmissible to attack a witness's credibility. The Court of Appeals for the Eleventh Circuit disagreed with the District Court's harmlessness analysis, so it considered whether to affirm on the alternative ground that Whitton was not prejudiced because Ozio's testimony as a whole was immaterial to the jury's verdict. The Florida Supreme Court had determined during state postconviction proceedings that, even without Ozio's testimony, the evidence against Whitton was overwhelming. The Court of Appeals explained that, under the Antiterrorism and Effective Death Penalty Act of 1996, it owed deference to that determination unless it was "based on an unreasonable determination of the facts in light of the evidence presented." 28 U. S. C. §2254(d)(2). In evaluating whether the state court's determination was reasonable, the Court of Appeals considered not only the evidence presented to the jury but also post-trial DNA evidence—a retest of blood stains on Whitton's boots conducted a decade after conviction that matched the victim's DNA. The Court of Ap-

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